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IN FOCUS

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Federal Criminal Theft Laws

Stealing property likely violates numerous state laws criminalizing theft in various forms, and, depending on the circumstances, it may also run afoul of federal criminal law. Some of these federal laws are limited to specific contexts, such as theft by bank examiners, while others may have far broader reach assuming that jurisdictional requirements are satisfied. Given ongoing congressional interest in theft crimes, as indicated by bills and hearings on the topic in the 118th and 119th Congresses, this In Focus provides an overview of relevant terminology and selected federal theft statutes and their jurisdictional bases.

Terminology

This product uses the term *theft* broadly to refer to the unlawful taking of property, a definition which may overlap with a number of related concepts, such as the following:

- *Larceny*: traditionally, a trespassory taking and carrying away of another's property.
- *Robbery*: at common law, robbery constituted larceny with the "additional requirements" that "the property be taken from the person or presence of the other and" that "the taking be accomplished by means of force or putting in fear."
- *Embezzlement*: "a statutory crime which did not exist at common law," which generally entails "(1) the fraudulent (2) conversion of (3) the property (4) of another (5) by one who is already in lawful possession of it."
- *Burglary*: "defined by the common law to be the breaking and entering of the dwelling house of another in the nighttime with the intent to commit a felony."

The U.S. Code uses terms like *larceny*, *embezzlement*, *robbery*, and *burglary* in the titles of code chapters or statutory sections. Many of the underlying provisions do not actually use these terms, however, and instead use other language to describe the type of prohibited theft. Even when federal statutes use terms such as *larceny*, the terms do not always mean exactly what they did at common law. Therefore, this In Focus groups selected federal theft statutes thematically by their jurisdictional basis, the type of property at issue, or the prohibited conduct at issue.

Maritime and Territorial Jurisdiction

Theft and robbery are both crimes if committed in the special maritime and territorial jurisdiction of the United States (SMTJ). As one federal appellate court has explained, the SMTJ generally includes "areas where American citizens and property need protection, yet no other government effectively safeguards those interests." One quintessential example is the "high seas," which are included in the definition of the SMTJ in 18 U.S.C. § 7, along with certain international waterways, federal lands, islands containing bird guano, and domestic aircrafts in flight. 18 U.S.C. § 661 authorizes various criminal penalties for theft occurring in the SMTJ. 18 U.S.C. § 2111 authorizes fines and up to 15 years of imprisonment for anyone in the SMTJ who "by force and violence, or by intimidation, takes or attempts to take from the person or presence of another anything of value."

Interstate Shipments

18 U.S.C. § 659 authorizes criminal penalties for theft and various related conduct involving goods moving in interstate commerce (the precise penalties authorized in § 659 vary based on the value of the goods stolen). In general, to obtain a conviction under one of the key provisions of § 659, prosecutors must prove that (1) the defendant stole, took, or carried away the goods at issue from a list of covered locations, including railroad cars, trucks, and warehouses; (2) the goods were moving as, or were a part of, an interstate shipment; and (3) the defendant had "the intent to convert them to his own use." As to the second element, goods are considered moving as part of an interstate shipment for § 659 purposes "at all points between the point of origin and the final destination (as evidenced by the waybill or other shipping document of the shipment), regardless of any temporary stop while awaiting transshipment or otherwise." In other words, § 659 does not apply to the theft of goods that have been delivered. In practice, given § 659's focus on protecting interstate shipments of goods, federal prosecutors have used the statute to charge individuals in connection with theft of goods taken from places like warehouses and terminals or from trucks or trains.

Government Property

Additional criminal laws may be applicable if a theft targets federal property. For example, 18 U.S.C. § 641 makes it a crime to steal "any record, voucher, money, or thing of value of the United States or of any department or agency thereof." If the property stolen is worth less than $1,000, the statute authorizes fines and a maximum prison term of one year. Offenses involving property of greater value may be punished by fines and up to 10 years of imprisonment. Another statute, 18 U.S.C. § 2112, prohibits robbery of "personal property belonging to the United States," and 18 U.S.C. § 648 bars embezzlement of public funds. Additional provisions, including 16 U.S.C. § 470ee, prohibit related conduct, such as unauthorized removal of archeological resources from public lands.

Trafficking in Stolen Goods

18 U.S.C. §§ 2314 and 2315 are related statutes, which can be traced back at least as far as the 1934 enactment of the National Stolen Property Act. Neither statute criminalizes theft. Rather, each focuses on various activities, such as the transport of stolen property in interstate or foreign commerce and the sale of stolen property that has crossed state lines. To obtain a conviction for transportation of

stolen goods under § 2314, prosecutors generally must prove "(1) the interstate transportation of (2) goods, merchandise, wares, money, or securities valued at $5,000 or more . . . (3) with knowledge that such items have been stolen, converted, or taken by fraud." Among other things, § 2315 criminalizes certain instances of receipt, possession, concealment, or sale of stolen property. As one federal appellate court has summarized the elements of § 2315, a conviction requires proof that (1) the property at issue was stolen; (2) the stolen property subsequently crossed a state boundary; (3) the defendant concealed, stored, or committed another prohibited act with respect to the property; (4) the "defendant knew the property was stolen"; and (5) the value of the property was at least $5,000. The $5,000 value threshold for both statutes may be satisfied either where a single item taken was worth at least that amount or where "the aggregate value of all goods, wares, and merchandise, securities, and money referred to in a single indictment" was at least $5,000.

Practical Note

Although 18 U.S.C. §§ 2314 and 2315 do not criminalize theft per se, both have been used to federally charge thieves when they subsequently traffic in stolen property. Courts have interpreted §§ 2314 and 2315 broadly to protect property taken by "any criminal appropriation." In practice this may include not only larceny, but also conduct such as "false pretenses," robbery, burglary, and embezzlement. Federal prosecutors have charged individuals under §§ 2314 and 2315 for conduct stemming from thefts targeting homes, vaults, retail stores, museums, and oil fields.

Post Offices and Mail

A number of federal criminal statutes protect the mail and postal facilities. For example, 18 U.S.C. § 1708 makes it a crime to steal "any letter, postal card, package, bag, or mail" from post offices, mail receptacles, and mail carriers. A related statute authorizes criminal penalties for obstructing correspondence, including by taking mail before delivery. As another illustration, 18 U.S.C. § 2115 prohibits forcibly breaking into a post office with intent to commit larceny.

Vehicles

Several federal criminal statutes prohibit the theft of vehicles or related conduct when it implicates commerce. For example, 18 U.S.C. § 2119—sometimes described as the federal carjacking statute—makes it a crime to take a vehicle from a "person or presence of another by force and violence or by intimidation." One significant limit to the scope of § 2119 is that prosecutors must establish that the defendant acted with "intent to cause death or serious bodily harm." According to the Supreme Court, "The intent requirement of § 2119 is satisfied when the Government proves that at the moment the defendant demanded or took control over the driver's automobile the defendant possessed the intent to seriously harm or kill the driver if necessary to steal the car (or, alternatively, if unnecessary to steal the car)." Section 2119 also requires proof that the motor vehicle had been "transported, shipped, or received" in interstate or foreign commerce. In practice, this commerce element appears to present a fairly low bar. For example, several federal courts have concluded that the commerce requirement is met if the carjacking occurs in a state other than where the vehicle was manufactured.

As another illustration, 18 U.S.C. §§ 2312 and 2313 criminalize conduct such as transport, receipt, and sale of motor vehicles, aircrafts, and vessels with knowledge that they were stolen and where jurisdictional commerce requirements are met. Other federal criminal provisions authorize penalties for the import or export of stolen vehicles or for trafficking in vehicles and parts "knowing that an identification number for such motor vehicle or part has been removed, obliterated, tampered with, or altered."

Other Selected Examples

- **Livestock:** Several federal criminal provisions concern livestock theft. For instance, 18 U.S.C. §§ 2316 and 2317 criminalize conduct including the transport and receipt of stolen livestock in interstate commerce.
- **Art and Antiquities:** 18 U.S.C. § 668 authorizes criminal penalties for stealing an "object of cultural heritage" from a museum that matches certain criteria. The provision defines an *object of cultural heritage* as something worth at least $100,000 or something that is over 100 years in age and "worth in excess of $5,000."
- **Bank Robbery:** 18 U.S.C. § 2113 criminalizes various types of bank robbery and related conduct, such as receiving or selling any "money or other thing of value which has been taken or stolen from a bank."
- **Medical Products:** Among other things, 18 U.S.C. § 670 makes it a crime to steal a pre-retail medical product if jurisdictional requirements are met. The statute defines a pre-retail medical product as one "that has not yet been made available for retail purchase by a consumer."
- **Controlled Substances:** 18 U.S.C. § 2118 prohibits certain thefts involving controlled substances. For example, one subsection criminalizes conduct including the actual or attempted forceful taking of a controlled substance belonging to "a person registered with the Drug Enforcement Administration" assuming certain harms occur or the person traveled in interstate commerce in committing the offense.

Congressional Considerations

Criminalizing theft, in and of itself, would likely exceed Congress's constitutional authority. As the examples above illustrate, however, Congress can potentially criminalize theft and related conduct when there is a valid jurisdictional basis such as regulating interstate or foreign commerce or protecting federal property.

Tamsin G. Harrington, Coordinator, Supervisory Attorney

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